

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: May 18, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Demurrer</u> Defendant Progeny Psychiatric Clinic’s Demurrer is SUSTAINED with 15 days leave to amend. <u>Pending Motion</u> Defendant Progeny Psychiatric Clinic demurs to the Complaint – Personal Injury, Property Damage, Wrong Death (Complaint) filed by Plaintiff Deborah Kwak. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint’s allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>1st Cause of Action (General Negligence)</u>
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Here, although Plaintiff has not requested leave to amend and has not explained how the Complaint could be amended, the demurrer is asserted against an original complaint and Plaintiff has not had a prior opportunity to amend the Complaint.

Further, the deficiencies in the Complaint arise from allegations that are not plead rather than underlying facts that cannot be changed. The Complaint, for example, could amended by including the form causes of action attachments.

However, Defendant contends that the court should deny leave to amend because Plaintiff has been declared a vexatious litigant.

Defendant concedes that Plaintiff filed this action before being declared a vexatious litigant such that Plaintiff did not violate in the vexatious litigant statute when she filed the Complaint.

Nonetheless, Defendant argues that an amended pleading is equivalent to "new litigation," such that leave to amend would "implicitly afford plaintiff the opportunity to circumvent the requirement that she first obtain leave of the presiding judge of this Court." (Def.'s Dem. at p. 6:5-8.)

Defendant cites to no authority for the proposition that an amended pleading constitutes "new litigation" or that the court should deny leave to amend simply because the plaintiff has been designated a vexatious litigant.

As the Supreme Court has explained:

[I]n an order barring a vexatious litigant from "filing any new litigation" *in propria persona*, "the word 'new' plainly refers to a civil lawsuit filed after entry of the prefiling order. It does not . . . refer to an early procedural stage in the lawsuit."

(*Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1172, citation omitted, quoting *Forrest v. Department of Corporations* (2007) 150 Cal.App.4th 183, 196.)

In addition, "the statutory term '*filing*' plainly refers to *filing* the lawsuit, not to prosecuting or maintaining it." (*Shalant v. Girardi, supra*, 51 Cal.4th at p. 1173.)

Thus, the prohibitions of the vexatious litigant statute should be read to apply only to the filing (and not maintaining) of litigation after the vexatious litigant order.

Further, if the issue a close one, the case law clearly indicates that the court should err towards granting leave to amend.

Therefore, the court will exercise its discretion and grant leave to amend.

		However, the parties are reminded that when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) <u>Case Management Conference</u> The Case Management Conference is CONTINUED to September 24, 2026 at 9:00 a.m. in Department N15. Defendant shall give notice of these rulings.
2	Ascencio vs. Orange County Fire Authority 30-2023-01336125	<u>Motion to Continue</u> Defendant Falck Mobile Health Corp. dba Care Ambulance's Motion to Continue Trial and All Related Dates is taken OFF CALENDAR, pursuant to the Stipulation and Order to Continue Trial and All Trial Related Dates issued March 5, 2026 (ROA #68), and the Notice of Withdrawal of Motion filed March 20, 2026 (ROA #78).
3	Habibi vs. Yang-Davies 30-2025-01471995	<u>Motion to Continue</u> Plaintiff Ghulam Reza Habibi's Motion for Continuance is taken OFF CALENDAR as moot. <u>Pending Motion</u> Plaintiff Ghulam Reza Habibi seeks leave to "use another way to serve [the landlords] or allow more time and permission to use substituted service." (Mot. for Continuance at p. 1:23-26.) Here, Plaintiff only seeks permission to serve by substituted service and does not specify any other method of service for which she seeks leave of the court. However, "[n]either service by mail nor substituted service requires the plaintiff to obtain permission of the court before using the alternative to personal service." (<i>Board of Trustees of Leland Stanford Junior University v. Ham</i> (2013) 216 Cal.App.4th 330, 337.)

		In addition, to the extent Plaintiff seeks more time to serve the Defendants Fu-Yang Davies and Brian Davies, the request is moot as Plaintiff has filed proofs of service showing that both of the named Defendants were served by substituted service on February 18, 2026. (See ROA #20, #21). The court will take the motion off calendar as moot. The court clerk shall give notice of this ruling.
4	Schiavo vs. Sterling Jewelers Inc. 30-2025-01521984	<u>Motion to Compel Arbitration</u> Defendants Sterling Jewelers Inc.'s and Ardeshir Sherafat's Motion to Compel Arbitration of Plaintiff's Claims is taken OFF CALENDAR, pursuant to the court's order issued April 24, 2026 (ROA #38) and the Request for Dismissal of the entire action of all parties and all causes of action filed May 1, 2026 (ROA #41).
5	AP Parpro, Inc. vs. Fulfil Solutions, Inc. 30-2025-01531382	<u>Motion for Leave to File</u> Defendant Fulfil Solutions, Inc.'s Motion for Leave to File Cross-Complaint is GRANTED. Defendant Fulfil Solutions, Inc. is ORDERED to file and serve upon all named Cross-Defendants the Cross Complaint attached as Exhibit A to the Motion for Leave to File Cross-Complaint within 30 days of this ruling. The court SETS a Status Conference regarding the filing and service of the Cross Complaint for October 1, 2026 at 10:00 a.m. in Department N15. All parties or their counsel are ORDERED to appear at the Status Conference ready to give the court an update on the status of the filing and service of, and response to the Cross Complaint. <u>Pending Motion</u> Defendant Fulfil Solutions, Inc. moves for leave to file the Cross Complaint attached as Exhibit A to the Motion for Leave to File Cross-Complaint. <u>Standard for Leave to File Cross-Complaint</u> Code of Civil Procedure Section 426.50 provides that A party who fails to plead a cause of action subject to the

	requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) There is a liberal policy regarding granting leave to file cross-complaints. (See <i>Align Technology, Inc. v. Bao Tran</i> (2009) 179 Cal.App.4th 949, 967; Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (The Rutter Group 2022) ¶ 6:557.) If the proposed cross-complaint is permissive, a party may file a cross-complaint “at any time before the court has set a date for trial.” (Code Civ. Proc., § 428.50, subd. (b).) However, if a party fails to file a permissive cross-complaint before the date set for trial, the party “shall obtain leave of court to file any cross-complaint,” which may be granted “in the interests of justice.” (Code Civ. Proc., § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave must be granted so long as defendant is acting in good faith. (Code Civ. Proc., § 426.50; Weil & Brown, Cal. Prac. Guide: Civ. Proc. before Trial (The Rutter Group 2022) ¶ 6:555.) A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc., § 426.30.) A cross-complaint is “related” to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc., § 426.10(c).) All other cross-complaints are permissive cross-complaints. In order to be related, there does not need to be “an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them.’ At the heart of this approach is the question of duplication of time and effort; i.e., are any factual or legal issues relevant to both claims?” (<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777, citations omitted, quoting <i>United Artists Corp. v. Masterpiece Prods.</i> (2d Cir. 1955) 221 F.2d 213, 216.) <u>Proposed Cross-Complaint</u> Here, Defendant seeks leave to file a cross-complaint against Plaintiff asserting claims for breach of contract, breach of the implied covenant of good faith and fair dealing, and negligence arising from the same transactions and occurrences alleged in Plaintiff’s complaint. (See Decl. of R. Jeremy Adamson in Supp. of Mot. for Leave to File Cross-Complaint (Adamson Decl.) at p. 2.)
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		Thus, the proposed cross-claims are related to the claims asserted by the Plaintiff the Complaint for damages and the Cross Complaint is compulsory. Defendant's Counsel represents that Defendant filed the Cross Complaint simultaneously with its answer on January 22, 2026, but the filing was rejected due to technical formatting defects. (See <i>ibid.</i>) Defendant then attempted to refile the Cross Complaint on January 28, 2026, but it was rejected as untimely. (See <i>ibid.</i>) The record reflects that Defendant acted in good faith and did not unreasonably delay in filing this motion seeking leave to file the Cross Complaint, about a week after the last rejection. (See ROA #27.) Further, Plaintiff and proposed Cross-Defendant AP Parpro, Inc. has not filed an opposition or responded to the motion, and has thus waived any arguments against the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Accordingly, the court will grant the motion for leave to file cross-complaint. Defendant shall give notice of this ruling.
6	Kittell vs. DoorDash, Inc. 30-2026-01537684	<u>Motion for Leave to Amend</u> Plaintiff James Stephen Kittell II's Motion for Leave to File Second Amended Complaint is taken OFF CALENDAR pursuant to the Request for Dismissal of the entire action of all parties and all causes of action filed May 8, 2026 (ROA #35).
7	Biotronik, Inc. vs. Letarte 30-2024-01436213	<u>Motion for Leave to Amend</u> Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint is GRANTED. Plaintiff Biotronik, Inc. is ORDERED to file and serve upon all named Defendants, within 30 days of this ruling, the First Amended Complaint attached as Exhibit 1 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint.

	The court SETS a Status Conference regarding the filing and service of the Cross Complaint for October 1, 2026 at 10:00 a.m. in Department N15. All parties or their counsel are ORDERED to appear at the Status Conference ready to give the court an update on the status of the filing and service of, and response to the First Amended Complaint. <u>Pending Motion</u> Plaintiff Biotronik, Inc. moves for leave to file the First Amended Complaint attached as Exhibit 1 to the Declaration of Andrew J. Pieper in Support of Plaintiff Biotronik, Inc.'s Amended Motion for Leave to File Amended Complaint. <u>Standard for Leave to Amend (Upon Motion of a Party)</u> The Civil Procedure Code provides that: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) As the Court of Appeal has explained: [T]rial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory – for example, an easement as opposed to a fee – no prejudice can result. (<i>City of Stanton v. Cox</i> (1989) 207 Cal.App.3d 1557, 1563.)
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	With respect to the first requirement, “[t]he basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.” (<i>Union Bank v. Wendland</i> (1976) 54 Cal.App.3d 393, 400-401.) In other words, “[t]he power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (<i>Herrera v. Superior Court</i> (1984) 158 Cal.App.3d 255, 259.) With respect to the second requirement, prejudice that may support denying amendment includes “delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (<i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; see also <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend”], citations and quotations omitted.) It is also an abuse of discretion to refuse amendment where that “results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense.” (<i>Morgan v. Superior Court, supra</i>, 172 Cal.App.2d at p. 530.) This is true even if leave to amend is sought as late as the time of trial or even during trial. (See <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564-565; <i>Rainer v. Community Memorial Hosp.</i> (1971) 18 Cal.App.3d 240, 251-256.) Thus, “[i]n the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.” (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 965.) <u>Proposed First Amended Complaint</u> Here, Plaintiff seeks to add seven causes of action: two causes of action for breach of contract – duty of loyalty against each individual Defendant, two causes of action for breach of fiduciary duty against each individual Defendant, and three causes of action for restitution/unjust enrichment against each Defendant. Plaintiff contends that each of these causes of action arise out of the same general set facts as those asserted in the original Complaint. In addition, Plaintiff points out that claims it was unaware of the bases for these causes of action until discovery revealed that the individual Defendants had diverted their time and services to Defendant Inari Medical, Inc. while still working for Plaintiff Thus, Plaintiff has made a <i>prima facie</i> showing that it is not seeking to inject wholly different facts or legal theories into this litigation and that it
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	acted in a reasonably prompt manner so as to not cause undue prejudice. Defendants contend that the amendment is futile because the proposed additional causes of action lack any evidentiary support. However, where the non-moving party argues that a proposed pleading is futile, “[l]eave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff’s claim is clear, but under substantive law, no liability exists and no amendment would change the result.” (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) Defendants have no showing that the facts are undisputed and that by law, they are not liable for any damages to Plaintiff. Defendants also contend that the amendments are unfair and prejudicial as Defendants would be required to engage in additional motion practice and defend against more claims at trial. However, any amendments that add new claims have the potential to create this type of prejudice. This not unfair or undue prejudice, but rather the normal and expected consequence of having additional claims asserted against a party. In any case, Defendants have not presented any evidence that the proposed amendments would <i>unfairly</i> increase the costs of discovery or trial preparation upon them. Finally, Plaintiff has complied with the requirements of California Rules of Court, rule 3.1324 governing the requirements of a motion for leave to amend. Therefore, the court will grant the motion for leave to file an amended complaint. <u>Motion to Seal</u> Defendant Inari Medical, Inc.’s Motion to Seal Portions of Plaintiff Biotronik, Inc.’s Motion for Leave to File Amended Complaint is DENIED without prejudice. <u>Pending Motion</u> Defendant Inari Medical, Inc. (Defendant Inari) moves to seal Exhibit 3 to the Declaration of Andrew J. Pieper filed in Support of Plaintiff Biotronik, Inc.’s Motion for Leave to File Amended Complaint. <u>Standard for Motion to Seal</u> “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c); see <i>In re Marriage of Tamir</i>
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		(2021) 72 Cal.App.5th 1068, 1078 [public’s right of access to court records is based on both common law right of access to public documents, as well as constitutional right grounded in the First Amendment].) To seal a record, the moving party must file a motion for such relief, along with a memorandum and a declaration containing facts sufficient to justify the sealing. (Cal. Rules of Court, Rule 2.551, subd. (b)(1).) The motion must be served on all parties, and unless the court orders otherwise, a complete copy of the document must be served on all other parties that already possess copies, along with the redacted version. (Cal. Rules of Court, Rule 2.551, subd. (b)(2).) To grant a motion to seal, the court must expressly find that: 1. an overriding interest exists that overcomes the right of public access to the record; 2. the overriding interest supports sealing the records; 3. a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. the proposed sealing is narrowly tailored; and 5. no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, Rule 2.550, subd. (d); <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988.) Examples of documents that may qualify to be sealed are: • Documents containing trade secrets, (see <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Tech., Inc.</i>, <i>supra</i>, 182 Cal.App.4th at p. 988 [business’ quality control records and complaint handling procedures may be sealed]); • Documents containing material protected by a privilege, (see <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 108 [documents protected by attorney-client privilege may be sealed]); • Confidential settlement agreement, (see <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283). Here, Defendant Inari contends that the document to be sealed “contains sensitive and proprietary business information including the identification of industry contacts and information about Inari’s products and procedures.” (Def. Inari’s Mot to Seal Portions of Pltf.’s Mot. for Leave to File Amend. Compl., Mem. P.s&A.s (Mem. P.s&A.s at p. 1:9-11.) However, Defendant Inari provides no evidence of this or even explanation as to portions of the document constitute sensitive and proprietary business information. Defendant Inari only submits the declaration of its counsel, who states that Defendant Inari designated the document as confidential pursuant to a stipulated protective order and that “[i]t is my understanding that
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		under the terms of the Protective Order, the parties have agreed that the document may be sealed, and the exhibit redacted pending a ruling on the motion to seal.” (Decl. of Sierra Chinn-Liu in Supp. of Def. Inari’s Mot to Seal Portions of Pltf.’s Mot. for Leave to File Amend. Compl., ¶ 3.) Defendant Inari argues that: [The document] has been designated by Inari as “Confidential” or “Highly Confidential – Attorneys’ Eyes Only” under the parties’ Stipulated Protective Order, which has been entered by the Court. The parties have agreed that material so designated may be filed under seal (e.g., para. 18). (Mem. P.s &A.s at p. 1:11-14.) However, an agreement that a document may be filed conditionally under seal pending a court ruling does not mean the court must or should ultimately grant the motion to seal. In addition, an agreement between the parties “alone is insufficient to constitute an overriding interest to justify sealing.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 35–36.) The Rules of Court are clear that “[t]he court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).) Instead, the court must consider the interests of the public and the interests served by having an open legal system. Thus, the court must require a specific showing that serious injury will occur absent a sealing order. (See <i>McNair v. National Collegiate Athletic Assn.</i>, <i>supra</i>, 234 Cal.App.4th at p. 35.) Here, Defendant Inari has made no such showing. The court will deny the motion to seal. Plaintiff shall give notice of these rulings.
8	Moyer vs. Norm Reeves, Inc. 30-2020-01128340	<u>Motion to Enforce Settlement</u> Plaintiff Richard Moyer Jr.’s Motion to Enforce Settlement Pursuant to CCP § 664.6 is DENIED. <u>Pending Motion</u> Plaintiff Richard Moyer Jr. moves for an order enforcing the settlement between Plaintiff and Defendants Irvine Auto Retail, Inc. dba Norm Reeves Honda Superstore Irvine and Chad Lemieux. <u>Standard for Enforcement of Settlement Agreement</u>

Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).)

As the Court of Appeal has explained:

The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement."

(*Greisman v. FCA US, LLC* (2024) 103 Cal.App.5th 1310, 1321, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809; see also *Eagle Fire and Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement."].)

Pursuant to Section 664.6, "even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, *if the parties have requested this specific retention of jurisdiction.*" (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 439, italics original.)

However, "[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement." (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732.)

Thus, before granting a motion to enforce a judgment, the court must determine "whether the parties entered into a binding settlement agreement of all or part of a case." (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 911.)

In making this determination, "a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms." (*Ibid.*)

	Here, the parties did not orally stipulate to the settlement before the court. Thus, the court did not have the opportunity to question the parties about the terms of the settlement, their understanding of the terms, or their agreement to be bound by the terms. In addition, Plaintiff has not attached to the motion the alleged settlement agreement. Thus, the court is unable to determine whether the material terms of the settlement were explicitly defined or even if, as one of the terms, the parties agreed to the retention of jurisdiction pursuant to Section 664.6. Instead, Plaintiff submits the declaration of one of his Counsel, which attaches an opposition to an order to show cause that contains another declaration of that same Plaintiff's Counsel, to which a variety of emails between Plaintiff's counsel and Defendants' counsel are attached. (See Decl. of William Welden, ¶ 2, Exh. 1.) Leaving aside the evidentiary issues of such a declaration within an opposition within a declaration, the declaration(s) do not show the existence of a settlement agreement with the term that Plaintiff now seeks to enforce. If anything, the declaration shows that the parties never came to a meeting of the minds as to the term in question. For example, the declaration shows that on March 17, 2025, Sara Schneider, former counsel for Defendants, sent an electronic mail to William Welden, counsel for Plaintiff, stating that "[w]e write to inform you that your response to our \$[redacted] settlement offer made last summer is due per the arbitrator by this Wednesday, March 20." (<i>Ibid.</i>) The evidence also shows that, on May 16, 2025, Schneider wrote to Welden stating, "We need an immediate response to our offer to resolve this case because the deadline to cancel the arbitration without penalty is quickly approaching on June 16. [¶] If we are not able to resolve before that deadline, we will not entertain any further settlement discussions." (<i>Ibid.</i>) The declaration includes a follow up electronic mail from Schneider on May 21, 2025, stating, "I am following up again – is there interest in making a counteroffer? We have very limited time before the arbitration fees become non-refundable, in which case my client will not consider settlement." (<i>Ibid.</i>) There is no evidence that Plaintiff or his Counsel responded to Schneider until July 11, 2025, almost two months later. On that date, Gary Carlin, another lawyer representing Plaintiff, sent an electronic mail to Schneider stating, "Please be advised that I am handling the case for Richard Moyer. I have your proposed settlement agreement wherein you confirm that we had settled the case for [redacted.] However, you are insisting on deducting [redacted] for fees
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		that you [paid [sic] to Jams that you have npt [sic] recpoevered [sic]. That deduction of [redacted] is not acceptable." (<i>Ibid.</i>) Thus, there is no evidence that the parties ever came to an agreement as to whether the arbitration fees would be deducted from the settlement payment. Nor is there any evidence that the parties agreed in writing that the court would retain jurisdiction pursuant to Section 664.6. The court will deny the motion. The court clerk shall give notice of this ruling.
9	Schifeler vs. Neogenomics Laboratories 30-2025-01483801	<u>Motion to Transfer Venue</u> Defendants Monterey Pathologists Medical Group's and Jeffrey Thomas Keating, M.D.'s Motion to Transfer Venue to Monterey County Superior Court is taken OFF CALENDAR, pursuant to the court's orders issued May 5, 2026 (ROA #60), and Defendant Monterey Pathologists Medical Group and Jeffrey Thomas Keating, M.D.'s Notice of Taking Motion to Transfer Venue to Monterey County Superior Court Off Calendar filed April 30, 2026 (ROA #56).
10	Alliance Funding Group vs. Good Tree Entertainment LLC 30-2022-01293136	<u>Motion to Amend Judgment</u> Plaintiff Alliance Funding Group's Motion to Correct Typographical Erro and Amend Judgment Nunc Pro Tunc is GRANTED. The court will issue the proposed Judgment on Stipulation submitted by Plaintiff Alliance Funding Group. (See ROA #83.) <u>Pending Motion</u> Plaintiff Alliance Funding Group moves to correct a typographical error and amend the Judgment entered on June 2, 2025 <i>nunc pro tunc</i>. <u>Standard to Amend Judgment</u> "The general rule is that once a judgment has been entered, the trial court loses its unrestricted power to change that judgment." (<i>Craven v. Crout</i> (1985) 163 Cal.App.3d 779, 782.) However, there is an exception whereby the court may "correct clerical errors in a judgment which has been entered." (<i>Ibid.</i>) Specifically, Civil Procedure Code section 473(d) provides:

The court may, upon motion of the injured party, or on its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed. . . .

(Code Civ. Proc., § 473, subd. (d).)

This statute codifies what has been recognized as a trial court's inherent authority to correct an order or judgment by a *nunc pro tunc* order at any time. (See *Estate of Goldberg* (1938) 10 Cal.2d 709, 717.)

To correct clerical errors in an existing order or judgment, clarifying words may added, (*Ames v. Paley* (2001) 89 Cal.App.4th 668, 674) and extraneous words may be removed, (*Estate of Careaga* (1964) 61 Cal.2d 471, 474–475, 478).

However, the court "may not amend such a judgment to substantially modify it or materially alter the rights of the parties under its authority to correct clerical error." (*Craven v. Crout, supra*, 163 Cal.App.3d at p. 782.)

Proposed Amendment to Judgment

On June 2, 2025, the Court entered the Judgment on Stipulation (Judgment) in accordance with the stipulation of Plaintiff and Defendants Frank Corey Oliver and Talisha Marie Oliver aka Talisha Henderson (Defendants). (See ROA #66.)

Paragraph 5 of the Judgment pertains to the party in favor of whom judgment is entered. (See *id.*, ¶ 5.)

Through checked boxes, the Judgment indicates that judgment was entered "for plaintiff . . . ALLIANCE FUNDING GROUP" and "for defendant . . . FRANK COREY OLIVER and TALISHA MARIE OLIVER aka TALISHA HENDERSON." (See *ibid.*)

Plaintiff submits evidence that judgment should have been entered for Plaintiff only and that the checked box "for defendant" in Paragraph 5 was a typographical error. (See Decl. of Laurel Adams, ¶ 4.) Plaintiff also presented evidence that this was the agreement of the parties. (See *id.*, Exh. 1.)

Defendants have not filed an opposition or responded to the motion, and thus, have waived any arguments against the motion. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].)

Therefore, the court will grant the motion to amend the judgment.

Plaintiff shall give notice of this ruling.

11	Smith vs. Romero 30-2024-01374547	<u>Motion to Consolidate</u> Defendants Damian Alberto Romero’s and Raul Mendenzdelara’s Motion to Consolidate Cases is GRANTED in part and DENIED in part. The following cases shall be CONSOLIDATED for purposes of trial only: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287; 4. <i>Chantal Abril Hernandez, et al. v. Damian Alberto Romero</i>, Case No. 2025-01499182. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547 shall be the lead case. The court VACATES the Case Management Conference in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The court SETS a Jury Trial for November 9, 2026 at 10:30 a.m. in Department N15 in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The estimated length of trial: 7-10 Days Parties and counsel are ordered not to schedule any other matters at the same time as the anticipated trial. Parties and counsel shall abide by Local Rule 317 prior to trial. The court clerk is ordered to file a copy of the minute order with this ruling in all of the above cases (See Cal. Rules of Court, rule 3.350(c).) <u>Pending Motion</u> Defendants Damian Alberto Romero and Raul Mendenzdelara (Moving Defendants) move to consolidate the following cases for all purposes: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-

01466287;

4. *Chantal Abril Hernandez, et al. v. Damian Alberto Romero*, Case No. 2025-01499182.

Standard for Consolidation

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions". (Code Civ. Proc., § 1048, subd. (a).) The court may also "order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (*Ibid.*)

California Rules of Court Rule 3.350 sets forth the requirements for a motion to consolidate:

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures), and to avoid the substantial danger of inconsistent adjudications (i.e., different results when matters are tried before different juries or judges). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012).)

There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (See *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.)

When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the

	pleadings are considered merged, one set of findings is made, and one judgment is rendered. (<i>Id.</i>) Cases may also be consolidated for purposes of trial only. (<i>Id.</i>) When this occurs, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (<i>Id.</i>) Each case presents its own facts and circumstances, but the court generally considers the following: (1) timeliness of the motion (i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present); (2) complexity (i.e., whether joining the actions involved would make the trial too confusing or complex for a jury); and (3) prejudice (i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter Group 2022) ¶ 12:362.) "[A]ll that the moving party need show is that the issues in each case are basically the same, and that 'economy and convenience' would be served by a joint trial. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 12:359, citing <i>Jud Whitehead Heater Co. v. Obler</i> (1952) 111 Cal.App.2d 861, 867.) "Even where the conditions of same parties and joinable causes are not present, the similarity of basic issues and most of the evidence may justify a single trial of the separate actions." (4 Witkin, California Procedure (6th ed. 2023) Pleading, § 361.) <u>Four Actions</u> Here, the four actions that Moving Defendant seek to consolidate arise from the same incident and, thus, involve some common questions of law and fact. Thus, judicial economy and convenience will be served by consolidating them for purposes of trial. On the other hand, consolidating all four actions for all purposes, which would involve merging the case files for all four actions would make the case files unmanageable, especially as some of the actions have been pending for more than two years. In addition, the four actions may not share common questions of law and fact as to some pretrial issues, such as discovery. Therefore, the court will grant the motion to consolidate for purposes of trial only. Three of the four actions have already been set for trial on November 9, 2026 at 10:30 a.m. in Department N15. The remaining action, <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287, is ready to be set for trial.
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		Therefore, in order to implement the consolidation of the cases, the court will set trial in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287 for November 9, 2026 as well. If any parties believe that they require additional time to prepare for the consolidated trial, they may either submit a stipulation and order that includes all of the parties, or they may file an <i>ex parte</i> application after giving notice to all of the parties. Moving Defendants shall give notice of this ruling.
12	DeVie vs. County of Orange 30-2024- 01423397	<u>Motion to Set Aside</u> Plaintiff Twila DeVie's and Ava DeVie's Motion for an Order to Set Aside Dismissal [sic] Plaintiffs' Counsel's Mistake, Inadvertence, Surprise, or Excusable Neglect, or in the Alternative Fault of Plaintiffs' Counsel is GRANTED. The dismissal entered in this case on August 7, 2025 is VACATED. Plaintiffs Twila DeVie and Ava DeVie are ORDERED to serve all named Defendants with the Complaint within 60 days of this ruling. The court SETS a Case Management Conference and Order to Show Cause re: Sanctions/Dismissal re: Failure to Serve for October 22, 2026 at 10:00 a.m. in Department N15. <u>Pending Motion</u> Plaintiffs Twila DeVie and Ava DeVie move to set aside the dismissal entered in this case on August 7, 2025. (See ROA #28.) <u>Standard to Set Aside</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Section 473 may be used to seek to set aside the dismissal of an action. (See <i>Chase v. Superior Court of Los Angeles County</i> (1962) 210 Cal.App.2d 872, 875 [dismissal "may be directly attacked under section 473 of the Code of Civil Procedure by a party to the action on the grounds of mistake, inadvertence, surprise, or excusable neglect or that it is void"]; see also <i>Gee v. Greyhound Lines, Inc.</i> (2016) 6 Cal.App.5th 477, 486-489 [plaintiff may seek "relief under Section 473 from a dismissal for failure to pay the transfer fee"].) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party

	seeking relief from default." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) "Section 473 is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted." (<i>Ibid.</i>) Nonetheless, the requirement that the judgment or order have been entered through "inadvertence, surprise, excusable neglect, or mistake" is "not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category." (<i>In re Wolper's Estate</i> (1956) 146 Cal.App.2d 249, 251.) Thus, in a motion to set aside a default judgment or order under Section 473(b), the initial burden is on the moving party to prove mistake, inadvertence, surprise, or excusable neglect by a "preponderance of the evidence." (<i>Kendall v. Baker</i> (1988) 197 Cal.App.3d 619, 624.) In addition, a motion for relief from default may also be based upon "an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) Where the attorney provides the declaration described in Section 473(b), relief from default is mandatory "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (<i>Ibid.</i>; see <i>Johnson v. Pratt & Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 622-623 [trial court could deny a motion for mandatory relief if it finds the attorney's declaration lacked credibility].) As the Court of Appeal has explained: To obtain mandatory relief under section 473, plaintiffs' counsel need not show that his or her mistake, inadvertence, surprise or neglect was excusable. No reason need be given for the existence of one of these circumstances. Attestation that one of these reasons existed is sufficient to obtain relief, unless the trial court finds that the dismissal did not occur because of these reasons. (<i>Graham v. Beers</i> (1994) 30 Cal.App.4th 1656, 1660; see also <i>Benedict v. Danner Press</i> (2001) 87 Cal.App.4th 87 Cal.App.4th 923, 927 ["Relief under the mandatory provision is available whether or not the attorney's neglect is excusable."].) "While not every mistake of an attorney constitutes excusable neglect (see, for example, cases cited in 3 Witkin, Cal. Procedure (1954) 2108), calendar errors by an attorney or a member of his staff are, under appropriate circumstances, excusable." (<i>Nilsson v. Los Angeles</i> (1967) 249 Cal.App.2d 976, 980-981; see also <i>Bouvett v. Layer</i> (1940) 40 Cal.App.2d 43, 47 [court properly granted relief pursuant to Section 473 where counsel entered wrong date for hearing on motion and this
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		mistake caused counsel to miss hearing].) <u>Prior Proceedings</u> On August 7, 2025, the Court ordered the entire action dismissed without prejudice, following Plaintiffs' failure to appear at the hearing on the Order to Show Cause re:" Sanctions/Dismissal for Failure to Serve. (See ROA #28.) Plaintiffs moved within six months to set aside that dismissal. (See ROA # 41.) In support of their request to set aside the dismissal, Plaintiffs submit an attorney declaration showing that the dismissal was entered as a result of Plaintiff's Counsel Michael L. Guisti's mistake, inadvertence, surprise, and/or neglect because Counsel was ill and failed to appear at the hearing on time. (See Combined Decl. of Michael L. Guisti, ¶¶ 19-26.) Plaintiff shall give notice of this ruling when Plaintiff serves named Defendants.
13	Lee vs. Volkswagen Group of America, Inc. 30-2024- 01445104	<u>Motion for Summary Judgment and/or Summary Adjudication</u> Defendants Volkswagen Group of America, Inc.'s and Audi South Coast's Motion for Summary Judgment or, in the Alternative, Motion for Summary Adjudication is DENIED. Defendants Volkswagen Group of America, Inc.'s and Audi South Coast's evidentiary objections to the Declaration of Plaintiff Paul B. Lee are OVERRULED as to evidentiary objection numbers 1-6. Defendants Volkswagen Group of America, Inc.'s and Audi South Coast's evidentiary objection to the Declaration of Timothy F. Fatone is SUSTAINED as to evidentiary objection number 1. <u>Pending Motion</u> Defendants Volkswagen Group of America, Inc. and Audi South Coast move for summary judgment as to Plaintiff Paul B. Lee's Complaint for Damages Based on Violations of the Song-Beverly Consumer Warranty Act (Complaint). In the alternative, Defendants move for summary adjudication as to the 1st and 2nd Causes of Action of the Complaint. <u>Timeliness of Motion</u> The Civil Procedure Code requires that a party moving for summary judgment or summary adjudication give notice of the motion by personal service at least 81 days before the hearing on the motion. (See Code Civ. Proc., § 437, subd. (a)(2).)

Further, if the notice is served by electronic mail, "facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (*Ibid.*; see Cal. Rules Ct., Rule 2.251(h).)

This notice period is mandatory and jurisdictional, and the court has no discretion to shorten the notice period absent the parties' express stipulation. (See *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 116; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 763-766, 768 [court cannot "infer[] from silence" plaintiff's "waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings."].)

Nor can the court cure a defect in notice by continuing the hearing so that the hearing is held the required number of days after notice was given because notice of the new hearing date must be given at least 81 days before the continued date. (See *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268.)

Here, Defendants gave notice of the motion by electronic mail on March 3, 2026. (See ROA #42.) The hearing on this motion is set for May 18, 2026, so notice had to be given at least 81 days plus 2 court days before the hearing, or February 24, 2026.

Here, notice was not given in a timely manner, which divested the court of jurisdiction to hearing this motion.

Therefore, the court must deny motion.

Standard for Summary Judgment or Summary Adjudication

However, even if the court were to consider the motion on the merits, it would still deny the motion.

A party may move for summary judgment, which "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

In addition, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c, subd. (f)(1).)

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact" (*Aguilar v. Atlantic Richfield Co.*

	(2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (<i>Id.</i> at 851.) A defendant moving for summary judgment or summary adjudication satisfies the initial burden by submitting undisputed evidence "showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, "[t]he defendant <i>must</i> indeed present evidence." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) "In some instances . . . , 'evidence may be so lacking in probative value that it fails to raise any triable issue.'" (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) In ruling on a motion for summary judgment or summary adjudication, "the court must 'consider all of the evidence' and 'all' of the 'inferences' reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 843, citations omitted.) Courts "'construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.'" (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All-Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201-1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) "The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from
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the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy/Spastic Children’s Foundation of Los Angeles and Ventura Counties* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

1st Cause of Action (Breach of Express Warranty Violation of the Song Beverly Consumer Warranty Act)

Defendants contend that the motion should be granted with respect to the 1st Cause of Action because the undisputed evidence shows that Defendants did not have a reasonable opportunity to repair the subject vehicle.

The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum, there must be more than one opportunity to fix the nonconformity. (See *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208–1209 [noting that Song-Beverly Act uses plural “attempts”].)

Further, each occasion that an opportunity for repairs is provided counts as an attempt, even if no repairs are actually undertaken. (See *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103, [all six occasions on which plaintiff presented vehicle to dealer to find and repair source of oil leak counted as repair attempts, even if parts were replaced on only one occasion].)

Here, the evidence shows that Plaintiff brought in the subject vehicle for repairs on three occasions. Whether that is a reasonable number of opportunities is a question for the factfinder to decide at trial.

In response, Defendants contend that two of the three service visits were for issues unrelated to those in this action.

However, even by Defendants’ recitation of the facts:

1. “On July 13, 2023, at 1,137 miles, the Subject Vehicle was towed to Audi Long Beach with concerns that the vehicle had no power and would not lock/unlock.” (Separate Statement of Undisputed Material Facts in Supp. of Def.’s Mot. for Summ. J. or, in the Alternative, Mot. for Summ. Adj. (Separate Statement), Undisputed Material Fact 7.)
2. “Plaintiff later returned to Audi Long Beach on August 28, 2023 at 1,228 miles, reporting the vehicle’s range displayed on the instrument cluster did not align with the phone application and that there was wind sounds coming from the A/C vents.” (Separate Statement, Undisputed Material Fact 9.)
3. “On December 19, 2023 at 4,613 miles, Plaintiff presented the Subject Vehicle to Audi Long Beach, reporting that on one occasion it stopped charging at home, that the MMI screen

		intermittently froze, and that the front and rear washer jets were not spraying properly.” (Separate Statement, Undisputed Material Fact 11.) From this evidence, a reasonable factfinder could decide that on two occasions, the subject vehicle was brought in due to problems with the power and charging system, and that on all three occasions, the subject vehicle was brought in due to problems with its electronic systems. Thus, there is a triable issue of material fact as to how many opportunities Defendants were given to repair the subject vehicle and whether that number of opportunities was reasonable under the circumstances. Thus, the court will deny the motion as to the 1st Cause of Action. <u>2nd Cause of Action (Breach of Implied Warranty Violation of the Song Beverly Consumer Warranty Act)</u> Defendants argue that the motion should be granted as to the 2nd Cause of Action because Plaintiffs cannot show that the subject vehicle was unmerchantable or unfit for its ordinary use. Defendants contend that since Plaintiff’s first and only warrantable repair visit on July 13, 2023, Plaintiff has not brought back the vehicle for the same issues. Defendants also assert that during Plaintiff’s two other service visits, the dealership determined that the vehicle was operating normally. The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1304). Indeed, “[u]ndisclosed latent defects . . . are the very evil that the implied warranty of merchantability was designed to remedy.” (<i>Id.</i> at p. 1305). “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (<i>Ibid.</i>) “Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known.” (<i>Id.</i>) Here, Defendants’ argument rests on the assumption that the 2nd and 3rd service visits were for issues unrelated to the 1st service visit. However, that is a disputed issue of fact that cannot be decided on a motion for summary judgment. Further, the fact that Defendants determined that the subject vehicle was operating normally is not irrebuttable evidence that the subject
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		vehicle did not have a latent defect. The problems faced by the Plaintiff, which were the reason that Plaintiff brought in the subject vehicle for repair, is evidence that there was a latent defect. Plaintiff's evidence that there was a latent defect and Defendant's evidence that there was not a latent defect create a triable issue of material fact. Finally, Plaintiff presents evidence that, in January 2024, he received a safety recall notice related to a problem in the vehicle's charging system. (See Decl. of Paul B. Lee in Opp'n to Def.s' Mot. for Summ. J. or, in the Alternative, Summ. Adj., ¶ 7.) This also creates a dispute of fact as to the existence of a latent defect and merchantability that will need to be decided at trial. Accordingly, the court will deny the motion as to the 2nd Cause of Action. <u>Summary Judgment</u> Summary judgment, as opposed to summary adjudication, is not proper unless there is no merit or no defense to the entire action or proceeding. (See Code of Civil Procedure section 437c, subd. (a).) Thus, if any cause of action survives, a grant of summary judgment is improper. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2002) ¶¶ 10:26 to 10:27, p. 10-9.) Here, both of the causes of action of the Complaint survive. Therefore, the court must deny the motion for summary judgment. Plaintiff shall give notice of this ruling.
14	Dinh vs. Nguyen 30-2025-01488040	There is no full written tentative ruling. The court provides the following summary tentative ruling: <u>Motion for Summary Judgment</u> Defendants Minh Phuong Nguyen's and Que Tam Trinh's Motion for Summary Judgment as to Plaintiffs' Complaint Based on Settlement and Release is DENIED. There is a triable issue of material fact as to whether Plaintiffs Thien Dinh and Ngan Nguyen, through their counsel, accepted the settlement presented by Defendants Minh Phuong Nguyen and Que Tam Trinh.

		There is no communication or action by the Plaintiffs or their Counsel that shows unambiguous acceptance of the settlement offer made by Defendants. Instead, the factfinder is left to interpret the words and conduct of the parties to determine whether the parties intended to enter into an agreement. From the evidence presented by the parties, a reasonable factfinder could determine that no agreement was entered into, but could also decide that an agreement was entered into. The court cannot grant a motion for summary judgment in such circumstances, and must deny Defendants' motion.
15	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Demurrer</u> Cross-Defendants Stephanie Hendrickson's, Luke Mensink's, Josiah Hendrickson's, and River Hendrickson's Demurrer to Cross-Complaint is OVERRULED as to the 1st and 2nd Causes of Action and SUSTAINED with 15 days leave to amend as to the 3rd Cause of Action. If Cross-Complainants The L3 Property Management and Barry J. Reieux do not amend the Cross-Complainants' Cross-Complaint within the period of time stated above, Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complainants' Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson demur to the entirety of Cross-Complainants' Cross-Complaint (Cross-Complaint) as well as to the 1st, 2nd, and 3rd Causes of Action of the Cross-Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact

or law" (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591, citation omitted; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318).

Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (*Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.* (2023) 95 Cal.App.5th 645, 653.)

Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413).

Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).)

1st Cause of Action (Breach of Contract/Lease Agreement) and 2nd Cause of Action (Recovery of Unpaid Rent)

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Cross-Defendants contend that the 1st and 2nd Causes of Action fail because the Cross-Complaint does not plead all the essential elements of a breach of contract and failure to pay rent claim.

In this case, the Cross-Complaint alleges the existence of a contract, which is attached as an exhibit. (See Cross-Compl., ¶¶ 34, 40, Exh. 1.)

In addition, the Cross-Complaint pleads that Cross-Defendants' breached the contract and failed to pay the rent. (See *id.*, ¶¶ 36, 42.)

Further, the Cross-Complaint asserts that Cross-Defendants' breach and failure to pay rent caused damages of at least \$11,000. (See *id.*, ¶¶ 38, 43.)

For most causes of action, including the 1st and 2nd Causes of Action here, the plaintiff need plead only ultimate facts, not evidentiary facts. (See *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].)

Thus, the 1st and 2nd Causes of Action adequately allege each element of the claim.

Cross-Defendants also argue that:

[T]he Cross-Complaint improperly lumps all Cross-Defendants together without alleging which specific individuals were parties to the lease or which Cross-Defendant engaged in which allegedly breaching conduct. Group pleading of this nature fails to provide fair notice and independently warrants dismissal or, at minimum, an order requiring clarification by amendment.

(Dem. to Cross-Compl. at p. 4:10-13.)

However, the court must assume the truth of all properly pleaded allegations of the Cross-Complaint.

Thus, if the Cross-Complaint alleges that “[o]n or about August 1, 2021, Cross-Complainants and Cross-Defendants entered into a residential Lease . . . ,” the court must assume, for purposes of this demurrer, that all Cross-Complainants and all Cross-Defendants were parties to the residential Lease. (Cross-Compl., ¶ 34.)

If Cross-Defendants wish to challenge that assertion, they must do so on a motion for summary judgment and/or summary adjudication, or at trial.

Further, Cross-Defendants cite to no cases for the proposition that the Cross-Complaint must provide more detail. If Cross-Defendants wish to have “clarification,” they can seek it in discovery.

Therefore, the court will overrule the demurrer to the 1st and 2nd Causes of Action.

3rd Cause of Action (Fraudulent Concealment of Property Damage)

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Specificity

“In California, fraud must be pled specifically” (*Lazar vs. Superior Court* (1996) 12 Cal.4th 631, 645; see also *Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132 [“Fraud must be

	pleaded with specificity.”.) “Concealment is a species of fraud, and ‘[] must be pleaded with specificity.’” (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 878, quoting <i>Linear Technology Corp. v. Applied Materials, Inc.</i>, <i>supra</i>, 152 Cal.App.4th at p. 132.) As the Court of Appeal has explained: This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect. (<i>Wilhelm v. Pray, Price, Williams & Russell</i> (1986) 186 Cal.App.3d 1324, 1331.) However, the specificity requirement should be relaxed when the plaintiff alleges fraud by omission. (See <i>Alfaro v. Community Housing Improvement System & Planning Ass’n, Inc.</i> (2009) 171 Cal.App.4th 1356, 1384 [rule that allegations of fraud must include how, when, where, to whom, and by what means misrepresentations were made is intended to apply to affirmative misrepresentations and not nondisclosures].) As the Court of Appeal has pointed out: “How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (<i>Ibid.</i>) Here, the Cross-Complaint alleges that: During her tenancy, Cross-Defendant STEPHANIE HENDRICKSON habitually parked her car next to the wall adjacent to the driveway, and on at least two occasions her car struck the hose bibb and pipe at the outside wall located next to driveway, causing damage in the form of bending and twisting the copper pipe inside and causing water to leak out. (Cross-Compl, ¶ 11.) The Cross-Complaint goes on to plead that “Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems, however Stephanie failed to do so in the two instances when she damaged the water pipe, concealing this from Owner and Property Manager, and surreptitiously hiring a friend to fix damage.” (<i>Id.</i>, ¶ 45.) The Cross-Complaint specifies an instance on July 11, 2023, where Cross-Complainants interviewed Cross-Defendant Stephanie Hendrickson about the mold, foul smells, or water leaks or intrusions and she “said everything was good” and “never informed Owner
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or Management of any health or respiratory problems, or that she damaged the outside pipe with her car causing water to leak out.” (*Id.*, ¶ 15.)

The Cross-Complaint also alleges another instance in November 2023 when “Property Manager phoned and sent an email to every tenant and none reported any plumbing leaks,” including Cross-Defendant Stephanie Hendrickson who “never mentioned that she damaged the outside pipe with her car causing a water leak.” (*Id.*, ¶ 16.)

The Cross-Complaint then asserts that Cross-Defendant Stephanie Hendrickson concealed the damaged pipe by “turn[ing] off the PVC shut-off valve for the irrigation line (and now the grass in the front yard is dead)” and “did not inform Owner or Property Manager of the situation.” (*Id.*, ¶ 18.)

The Cross-Complaint also explains that “Cross-Defendants intentionally concealed the water damages (leading to mold) to avoid responsibility.” (*Id.*, ¶ 46.)

Given the relaxed standards for pleading fraudulent concealment (as opposed to affirmative misrepresentation), the Cross-Complaint pleads the 3rd Cause of Action with sufficient specificity.

Civil Code Section 1941 and 1941.1

Cross-Defendants also contend that:

Civil Code sections 1941 and 1941.1 impose non-delegable duties on landlords to maintain residential rental property in a habitable condition. To the extent the Cross-Complaint seeks to impose liability on tenants for statutory habitability violations, alleged mold conditions, or remediation obligations arising from water intrusion, such claims fail as a matter of law.

(Dem. to Cross-Compl. at p 3:20-23.)

However, it is clear from the allegations of the 3rd Cause of Action that it is not seeking to impose liability on Cross-Defendants for damages relating to the landlord’s failure to maintain residential property.

Rather, it seeks to impose liability on Cross-Defendants for their fraudulent concealment of damage to the residential property that Cross-Defendants caused themselves.

Thus, Sections 1941 and 1941.1 do not apply here.

Duplicative Claim

Cross-Defendants next argue that the 3rd Cause of Action is duplicative because the duty to disclose is alleged to arise from the lease agreement.

		Here, the Cross-Complaint alleges that “[u]nder the Lease, Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems.” (Cross-Compl., ¶ 45.) “Duty ‘is an essential element’ of the tort of negligence.” (<i>Melton v. Boustred</i> (2010) 183 Cal.App.4th 521, 529, quoting <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 984.) “The existence and scope of duty are legal questions for the court,” (<i>Merrill v. Navegar, Inc.</i> (2001) 26 Cal.4th 467, 477), which the court makes on a case-by-case basis, (see <i>Isaacs v. Huntington Mem’l Hosp.</i> (1985) 38 Cal.3d 112, 124.) Here, by asserting the breach of a duty based on contract, Cross-Complainants are claiming a breach of contract and not negligence. The negligence is duplicative of the breach of contract claim in that regard. (Compare Cross-Compl., ¶ 36.b [alleging that “Cross-Defendants, and each of them, breached said Lease Agreement by . . . [f]ailing to inform Owner or Property Manager that Stephanie damaged the pipe twice with her car, causing water to leak leading to mold” with <i>id.</i>, ¶ 45 alleging that “[u]nder the Lease, Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems, however Stephanie failed to do so in the two instances when she damaged the water pipe, concealing this from Owner and Property Manager, and surreptitiously hiring a friend to fix damage.”) Thus, the court will sustain the demurrer to the 3rd Cause of Action. <u>Uncertainty</u> “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) “[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party.” (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) In addition, a demurrer for uncertainty must identify by line and page number, the language that creates the uncertainty. (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved
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	of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) "Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty." (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) Cross-Defendants assert that the Cross-Complaint is uncertain because it fails to allege "the rent amount, time period, mitigation, or consistency with the admitted full return of the security deposit." (Dem. to Cross-Compl. at p. 4:15-16.) This argument is wholly without merit. Cross-Defendants fail to cite to any authority that requires the Cross-Complaint to contain such details. Cross-Defendants also do not explain how the lack of this information makes it impossible for them to respond to the Cross-Complaint. Cross-Defendants further fail to specify the page and line numbers which are uncertain. Accordingly, the court will overrule the demurrer on this basis. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghetesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not
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	been given.” (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Cross-Complainants request leave to amend and the demurrer is asserted against the original Cross-Complaint, so that Cross-Complainants have not had a prior opportunity to amend. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) <u>Motion to Strike</u> Plaintiffs Stephanie Hendrickson’s, Luke Mensink’s, Josiah Hendrickson’s, and River Hendrickson’s Motion to Strike Defendants’ Affirmative Defenses. <u>Pending Motion</u> Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson move to strike the affirmative defenses asserted in Defendants The L3 Property Management’s and Barry J. Reieux’s Answer to Plaintiffs’ Complaint (Answer). <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in
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the complaint may be stricken. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].)

The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.)

However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).)

"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, citations omitted.)

Affirmative Defenses

Here, Plaintiffs do not seek to strike any irrelevant, false, or improper matter contained in the Answer.

Instead, Plaintiffs argue that some of the affirmative defenses should be stricken because they consist solely of legal conclusions and fail to allege any facts.

However, while a cause of action that consists only of legal conclusions and is unsupported by the facts may be the subject a demurrer, Plaintiffs cite to no authority for the proposition that an affirmative defense must consist of more than legal conclusions or be supported by allegations of fact.

Plaintiffs also contend that some of the affirmative defenses are internally inconsistent and mutually exclusive.

This argument is without merit as it is well-established that a party may "plead in the alternative and make inconsistent allegations." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

Plaintiffs next assert that some of the affirmative defenses improperly attempt to shift statutory habitability obligations upon tenants.

However, Plaintiffs fail to explain how the affirmative defenses shift obligations upon tenants or why it would be appropriate to strike an affirmative defense in that circumstance.

		Finally, “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322.) Plaintiffs fail to specify in their notice or any other part of their motion papers the specific portions of the answer that Plaintiffs seek to strike. Therefore, the court will deny the motion to strike. Defendants and Cross-Complainants shall give notice of these rulings.
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